

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

LATROYA LOVELL,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, POLICE OFFICER GREGORY LOBIANCO, Shield No. 31307, DETECTIVE RICHARD PENGEL, Shield No. 4240, and POLICE OFFICERS JOHN DOES #1-10 (names, rank and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

SUMMONS

Index No.:

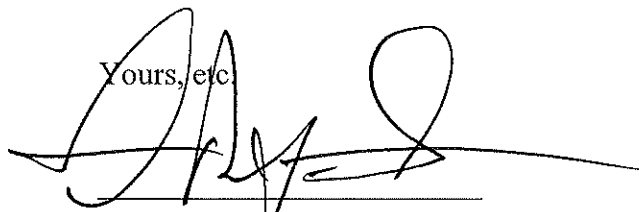
The Basis of Venue is:
Location of IncidentPlaintiff designates New York
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

September 28, 2017

Yours, etc.



ELLIOT D. SHIELDS, ESQ.
Attorney for Plaintiff
192 Lexington Avenue, Suite 802
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(212) 425-1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE RICHARD PENGEL, Shield No. 4240, 32nd Precinct Detective Squad,
250 West 135th Street, New York, NY, 10030
POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, 32nd Precinct, 250 West
135th Street, New York, NY, 10030
POLICE OFFICER GREGORY LOBIANCO, Shield No. 31307, 32nd Precinct, 250
West 135th Street, New York, NY, 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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LATROYA LOVELL,

INDEX NO.:

Plaintiff,

-against-

VERIFIED COMPLAINT
[JURY TRIAL DEMANDED]

CITY OF NEW YORK, POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, POLICE OFFICER GREGORY LOBIANCO, Shield No. 31307, DETECTIVE RICHARD PENGEL, Shield No. 4240, and POLICE OFFICERS JOHN DOES #1-10 (names, rank and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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Plaintiff, LATROYA LOVELL, by her attorney, ELLIOT D. SHIELDS, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York. On December 23, 2015, at approximately 6:00 p.m., plaintiff, LaTroya Lovell, was robbed at gunpoint when she was attempting to enter her then boyfriend's apartment, located at 117 West 129th Street, New York, New York. After the robbery, Ms. Lovell went to a neighbor's apartment and called 911 to report the robbery. Shortly thereafter, approximately eight to ten New York Police Department ("NYPD") police officers ("P.O.") arrived at the apartment building, including POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, POLICE OFFICER GREGORY LOBIANCO, Shield No. 31307, DETECTIVE RICHARD PENGEL, Shield No. 4240, and other officers from the NYPD's 32nd Precinct, where they met Ms. Lovell in the hallway outside of the apartment. The

Defendant Police Officers asked Ms. Lovell for her consent to enter and search the apartment, but she refused because she did not live in the apartment. Nevertheless, despite Ms. Lovell refusing to consent to the Defendant POLICE OFFICERS entering and searching the apartment, and despite not having exigent circumstances, a warrant, or other justification, the Defendant POLICE OFFICERS entered and searched the apartment while Ms. Lovell was in the hallway of the apartment building.

2. After the Defendant POLICE OFFICERS unlawfully entered and searched the apartment, Ms. Lovell was detained by the Defendant POLICE OFFICERS and escorted to the NYPD's 32nd Precinct with her one-year-old son, where she was brought to the Detective Squad and questioned about the robbery for approximately two hours. While she was detained at the 32nd Precinct, the Defendant POLICE OFFICERS attempted to pressure Ms. Lovell to implicate her then boyfriend in various crimes, but she informed them that she had no knowledge of him committing any alleged crimes. Thereafter, in retaliation for Ms. Lovell refusing to implicate her ex-boyfriend in any crimes, the Defendant Police Off POLICE OFFICERS falsely arrested Ms. Lovell for possession of a weapon they alleged found during their illegal search of her ex-boyfriend's apartment, despite knowing that Ms. Lovell did not own or reside in the apartment, and that she was not present inside of the apartment when the Defendant Police Officers arrived at the apartment building in response to her 911 call, and that she had just been robbed at gunpoint prior to the officers arriving at the building. The Defendant Police Officers nevertheless arrested Ms. Lovell and fabricated official police paperwork in an attempt to manufacture probable cause for her arrest. The Defendant Police Officers then forwarded the falsified police paperwork to the New York County District Attorney's Office, thereby initiating a malicious prosecution of Ms. Lovell and depriving her of her constitutional right to a fair trial.

3. The grounds for this action arise out of the wrongful, unlawful, and improper acts of these defendants and their intentional violations of Ms. Lovell's rights as secured by the common law and the constitutions of the United States and the State of New York. Plaintiff Ms. Lovell is entitled to damages for Defendants' unconstitutional actions.

II. THE PARTIES

4. Plaintiff Latroya Lovell is a citizen of the United States and a resident of City, County and State of New York.

5. Defendant CITY OF NEW YORK ("CITY") was and is a municipal entity created and authorized under the laws of the State of New York. Defendant CITY maintains the New York Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

6. POLICE OFFICER ("P.O.") MARKEITH CATLIN, Shield No. 7111, ("CATLIN") P.O. GREGORY LOBIANCO, Shield No. 31307, ("LOBIANCO"), DETECTIVE RICHARD PENGEL, Shield No. 4240 ("PENGEL"), and JOHN DOES # 1-10 ("Police Officer John Does") (collectively, "Defendant POLICE OFFICERS," individually, "Defendant POLICE OFFICER"), are and were at all times relevant herein, officers, employees and agents of the NYPD.

7. The defendant NYPD officers are being sued in their individual and official capacities.

8. At all times relevant herein, Defendant POLICE OFFICERS defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

9. The Defendant POLICE OFFICERS' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

10. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

11. Plaintiff, in furtherance of her State causes of action, filed a timely Notice of Claim against the Defendant CITY, and the Defendant CITY held a 50-h hearing on April 27, 2017.

12. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY has failed to pay or adjust the claim.

13. This action is being brought within one year and 90 days of the event giving rise to Plaintiff's State causes of action.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On December 23, 2015, the plaintiff, Ms. Latroya Lovell, was a 22-year-old single mother who had never been arrested, and was a full-time undergraduate student in her last semester at The New School, and had been accepted into the Master's Degree program for psychology at The New School for the Fall 2016 term.

17. On December 23, 2015, at approximately 5:00 p.m., Ms. Lovell and her one-year-old son arrived at 117 West 129th Street, Apartment 3C, New York, New York, which was the apartment of her boyfriend at the time.

18. As Ms. Lovell was about to enter the door to her ex-boyfriend's apartment, two masked men with guns grabbed her, forced her into the apartment, robbed her and ransacked the apartment.

19. The robbers stole Ms. Lovell's phone and wallet.

20. After the robbers left, Ms. Lovell went to a neighbor's apartment and borrowed a phone to call 911.

21. Ms. Lovell called 911 and reported that she had been robbed at gunpoint.

22. Shortly thereafter, approximately eight to ten Defendant POLICE OFFICERS, including but not limited to Defendants LOBIANCO, PENGEL, and CATLIN arrived at the apartment building located at 117 West 129th Street, New York, New York, where Ms. Lovell met the officers in the hallway outside of her ex-boyfriend's apartment.

23. Ms. Lovell informed the Defendant POLICE OFFICERS that she was robbed by two masked men with guns who stole her phone and wallet.

24. Ms. Lovell informed the Defendant POLICE OFFICERS that she did not live in the apartment and that it was her then boyfriend's apartment.

25. The Defendant POLICE OFFICERS asked Ms. Lovell for her consent to enter and search the apartment.

26. Ms. Lovell informed the Defendant POLICE OFFICERS that she did not consent and that she could not consent to them entering and searching the apartment, because she did not live in the apartment or own the apartment.

27. The Defendant POLICE OFFICERS pressured Ms. Lovell to let them into the apartment and told her it was "suspicious" that she would not allow them to enter the apartment.

28. The Defendant POLICE OFFICERS ignored Ms. Lovell and entered and searched the apartment without Ms. Lovell's consent, exigent circumstances or a warrant.

29. Thereafter, the Defendant POLICE OFFICERS detained Ms. Lovell and informed her that she had to come with them to canvass the neighborhood in an NYPD vehicle to see if she could identify the robbers.

30. The Defendant POLICE OFFICERS then escorted Ms. Lovell and her one-year-old son out of the apartment building and placed her in the back of an NYPD vehicle.

31. Instead of driving Ms. Lovell and her one-year-old son around to canvass the neighborhood for the robbers, the Defendant POLICE OFFICERS transported Ms. Lovell and her one-year-old son directly to the 32nd Precinct.

32. When she arrived at the 32nd Precinct, the Defendant POLICE OFFICERS brought Ms. Lovell and her one-year-old son to an interrogation room in the Detectives' Squad, where they questioned her for approximately two hours.

33. During the approximately two hours, the Defendant POLICE OFFICERS attempted to pressure Ms. Lovell to implicate her ex-boyfriend in various crimes, but she informed the Defendant POLICE OFFICERS that she was unaware of her ex-boyfriend being engaged in any criminal activities.

34. Thereafter, the Defendant POLICE OFFICERS informed Ms. Lovell that she was under arrest for criminal possession of a weapon and reckless endangerment of a child.

35. Prior to her arrest, the Defendant POLICE OFFICERS informed Ms. Lovell that they would release her without charge if she provided them with information about her ex boyfriend's alleged criminal activities.

36. Ms. Lovell informed the Defendant POLICE OFFICERS that she had no information about her ex-boyfriend engaging in any other criminal activities whatsoever.

37. The Defendant POLICE OFFICERS informed Ms. Lovell, in sum and substance, that since she would not give them any information about her ex boyfriend's alleged criminal activities, she was under arrest for criminal possession of a weapon, reckless endangerment of a child, and other alleged crimes.

38. At no time did the Defendant POLICE OFFICERS recover any drugs, contraband or other illegal paraphernalia from Ms. Lovell, or from her custody, possession or control.

39. At no time did the Defendant POLICE OFFICERS recover any weapons from Ms. Lovell, or from her possession, custody or control.

40. At no time did Ms. Lovell ever possess a weapon.

41. At no time did Ms. Lovell ever possess any drugs, contraband or other illegal paraphernalia.

42. At no time did Ms. Lovell endanger her child.

43. Ms. Lovell did not reside in the apartment located at 117 West 129th Street, Apartment 3C, New York, New York.

44. Ms. Lovell did not have any possessions in the apartment located at 117 West 129th Street, Apartment 3C, New York, New York, such as clothing, children's toys, mail addressed to her at that address, feminine hygiene products, or any other personal items that could have led the Defendant POLICE OFFICERS to reasonably believe that she resided in the apartment.

45. At no time did Ms. Lovell commit any crime or violate the law in any way.

46. Nevertheless, the Defendant POLICE OFFICERS unlawfully arrested Ms. Lovell without reasonable or probable cause, or any legal justification.

47. Ms. Lovell was then placed into a cell at the 32nd Precinct.

48. Thereafter, while Ms. Lovell was detained at the 32nd Precinct, Defendant CATLIN and the other Defendant POLICE OFFICERS fabricated their account of their interaction with Ms. Lovell in official police paperwork in an attempt to manufacture probable cause for her arrest.

49. Specifically, Defendant CATLIN and the other Defendant POLICE OFFICERS falsely stated that Ms. Lovell answered the door to the apartment in an attempt to manufacture consent to enter and search the apartment without a warrant, and made other false statements to manufacture probable cause for her arrest.

50. Defendant CATLIN and the other Defendant POLICE OFFICERS falsely accused Ms. Lovell of violating Penal Law Sections 265.02(7), 265.01-b(1) 120.20 and 220.50 in her arrest paperwork.

51. Defendant CATLIN and the other Defendant POLICE OFFICERS sent the paperwork that falsely accused Ms. Lovell of violating Penal Law Sections 265.02(7), 265.01-b(1) 120.20 and 220.50 to the New York County District Attorney's Office, despite knowing it contained facts and evidence that was untrue, and which would likely influence the factfinder's determination of her guilt or innocence.

52. Upon information and belief, the New York County District Attorney's Office reviewed the Defendant POLICE OFFICERS' fabricated account of the reasons for arresting and charging Ms. Lovell, and determined that even based on the Defendant POLICE OFFICERS' falsified paperwork, they lacked probable cause to charge Ms. Lovell with violations of Penal Law Sections 120.20 and 220.50.

53. A criminal prosecution was initiated by the Defendant POLICE OFFICERS against Ms. Lovell without probable cause, and based upon their false communications to the District Attorney's Office, for violations of Penal Law Sections 265.02(7) and 265.01-b(1).

54. Defendant CATLIN signed a Criminal Court Complaint that contained a fabricated account of the incident that led to Ms. Lovell's arrest, which was filed in New York County Criminal Court, which formed the basis for her prosecution for alleged violations of Penal Law Sections 265.02(7) and 265.01-b(1).

55. Based on the Defendant POLICE OFFICERS' observations, it would have been impossible for Ms. Lovell to have violated Penal Law Sections 265.02(7) and 265.01-b(1).

56. After being detained at the 32nd Precinct for approximately 17 hours, Ms. Lovell was transported to a hospital against her will by the Defendant POLICE OFFICERS.

57. After several hours at the hospital, the Defendant POLICE OFFICERS transported Ms. Lovell to Manhattan Central Booking.

58. Ms. Lovell was detained at Manhattan Central Booking for several hours before she was arraigned in New York County Criminal Court.

59. After being detained at New York County Central Booking for approximately seven hours, plaintiff was arraigned in New York County Criminal Court.

60. At arraignment, Ms. Lovell was falsely charged with two felonies under Penal Law Sections 265.02(7) and 265.01-b(1).

61. At arraignment, Ms. Lovell's bail was set in the amount of \$20,000.

62. Ms. Lovell was unable to post bond at arraignment and was remanded to the custody of the Department of Correction and transported to the Rose M. Singer complex at Riker's Island at approximately 10:00 p.m. on December 24, 2015.

63. When Ms. Lovell arrived at Riker's Island, her pedigree information was taken and she was strip searched.

64. Ms. Lovell was detained at Riker's Island for approximately 24 hours until she posted bond and was released from custody at approximately 10:00 p.m. on December 25, 2015.

65. As a result of the Defendant POLICE OFFICERS' unlawful actions, Ms. Lovell was detained in custody for a total of approximately 55 hours.

66. Ms. Lovell hired a private criminal defense attorney and paid him approximately \$5,000.

67. After making approximately five appearances in criminal court, all of the false criminal charges initiated against Ms. Lovell by the Defendant POLICE OFFICERS were dismissed in their entirety on June 30, 2016.

68. Some of the Defendant POLICE OFFICERS observed the violation of Ms. Lovell's rights under the Constitutions of the United States and the State of New York, and state common law, but did nothing to prevent the unlawful seizure, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of plaintiff.

69. The unlawful search, false arrest, false imprisonment, fabrication of evidence, and malicious prosecution of plaintiff by the defendant NYPD officers caused plaintiff to sustain physical, psychological and emotional trauma, loss of liberty, economic and other damages.

70. Because of the emotional and psychosocial stress associated with the Defendant POLICE OFFICERS' unlawful actions and the false criminal charges they initiated against her, Ms. Lovell was forced to withdraw from her last semester of undergraduate studies at The New School and postpone her graduation.

71. At the time of her arrest on December 23, 2015, Ms. Lovell was in her final semester of undergraduate studies at The New School and was scheduled to graduate in June 2016.

72. Because of the Defendant POLICE OFFICERS' unlawful actions on December 23, 2015, and thereafter, Ms. Lovell was forced to postpone her final semester of undergraduate studies and her graduation from The New School.

73. Prior to the incident on December 23, 2015, Ms. Lovell had been accepted into the Master's Degree program for Psychology at The New School

74. Because of the incident on December 23, 2015, Ms. Lovell was forced to defer her start date for the Master's Degree program at The New School.

75. Because of the incident on December 23, 2015 and the subsequent malicious prosecution, the Administration for Children's Services opened a case against Ms. Lovell in Family Court.

76. Because of the lack of any evidence whatsoever that Ms. Lovell had endangered her child in any way, ACS dismissed and closed her case in approximately three weeks.

77. By the actions described above, each and all of the Defendant POLICE OFFICERS violated good and accepted police practices, and various sections of the NYPD Patrol Guide, including but not limited to sections 203-08, 212-75, and 208-15.

PLAINTIFF'S INJURIES AND DAMAGES

78. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiff:

- a. Suffered an unlawful detention and loss of freedom for approximately 55 hours;
- b. Suffered and continues to suffer mental and emotional distress and harm;
- c. Was diagnosed with Post Traumatic Stress Disorder and other ailments as a result of the incident;
- d. Has been forced to undergo and continues to receive extensive medical and mental health treatment;
- e. Suffered exacerbated mental and emotional harm as Ms. Lovell was unable to be with her one-year-old son on his first Christmas because of her unlawful detention;
- f. Was delayed in earning her undergraduate degree from The New School;
- g. Was delayed in beginning her psychology Master's Degree studies at The New School;
- h. Was publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation that was greater than an ordinary false arrest victim, as The New York Post published an inflammatory article about her arrest with her picture that painted Ms. Lovell as a criminal, which she is not;
- i. Had to pay approximately \$5,000.00 and incurred debts for the costs of her legal defense;

- j. Had to defend herself in the ACS case that was initiated as a result of the false criminal charges brought against her by the Defendant POLICE OFFICERS;
- k. Lost employment income and permanent impairment of earning power; and
- l. Incurred other items of attendant damages.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

79. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

80. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

81. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from retaliatory prosecution;
- e. To be free from malicious prosecution;
- f. To the right to a fair trial;
- g. To freedom of speech and expression.

82. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

83. The acts complained of were carried out by the aforementioned Defendant POLICE OFFICERS in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

84. The acts complained of were carried out by the aforementioned Defendant POLICE OFFICERS in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

85. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, economic harm, legal expenses and damages to her reputation and standing within her community.

86. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

87. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

88. One or more of the Defendant POLICE OFFICERS handcuffed and arrested plaintiff.

89. This arrest was made in the absence of a warrant for the arrest.

90. This arrest was made in the absence of probable cause for this arrest.

91. The Defendant POLICE OFFICERS arrested plaintiff without having exigent circumstances for doing so.

92. There was no other authority for the arrest of plaintiff.

93. The plaintiff was conscious of this arrest.

94. The plaintiff did not consent to this arrest.

95. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, economic damages, legal expenses and damages to her reputation and standing within her community.

96. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

THIRD CLAIM FOR RELIEF
UNLAWFUL SEIZURE UNDER 42 U.S.C. § 1983

97. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

98. The illegal seizure and detention of plaintiff by the Defendant POLICE OFFICERS herein terminated plaintiff's freedom of movement through means intentionally applied.

99. Defendants lacked probable cause to seize plaintiff.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the United States Constitution and the State of New York.

101. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to her reputation and standing within her community.

102. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF
DENIAL OF THE RIGHT TO A FAIR TRIAL UNDER 42 U.S.C. § 1983

103. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

104. By deliberately manufacturing false evidence against Ms. Lovell, including police reports and other arrest paperwork containing the defendants' own fabricated accounts that Ms. Lovell was engaged in criminal activity, and forwarding that fabricated evidence to prosecutors, the Defendant POLICE OFFICERS caused plaintiff to be arrested, detained, charged, and prosecuted, in violation of her rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

105. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, economic damages, legal expenses and damages to his reputation and standing within his community.

106. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

107. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

108. The Defendant POLICE OFFICERS, acting individually and in concert, initiated the prosecution of Mr. Carnot, despite knowing that probable cause did not exist to arrest and prosecute Ms. Lovell for any crime.

109. False and fabricated evidence was given by the Defendant POLICE OFFICERS to the District Attorney's Office.

110. The Defendant POLICE OFFICERS knew or were deliberately and recklessly indifferent to the truth that probable cause did not exist to arrest and prosecute Ms. Lovell.

111. There was actual malice and an absence of probable cause for the criminal proceeding against Ms. Lovell and for each of the charges for which she was prosecuted.

112. On June 30, 2016, the prosecution terminated in Ms. Lovell's favor.

113. As a direct and proximate result of the Defendant POLICE OFFICERS' actions, Ms. Lovell was wrongly prosecuted for over six months and suffered the other grievous and continuing injuries and damages as set forth above.

114. Accordingly, Plaintiff demands judgment against the defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW

115. Plaintiff repeats and reiterates all of the allegations contained above as if fully set forth herein.

116. By the actions described above, each and all of the Defendant POLICE OFFICERS, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

117. By the actions described above, each and all of the Defendant POLICE OFFICERS violated good and accepted police practices, and various sections of the NYPD Patrol Guide, including but not limited to section 203-08.

118. On June 30, 2016, the prosecution terminated in Ms. Lovell's favor.

119. There was no probable cause for the commencement or the continuation of the criminal proceedings.

120. The Defendant POLICE OFFICERS acted with actual malice.

121. The Defendant POLICE OFFICERS were at all times agents, servants, and employees acting within the scope of their employment by the Defendant CITY and the NYPD, which are therefore responsible for their conduct.

122. The Defendant CITY, as the employer of the individual NYPD defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER *MONELL*

123. Plaintiff repeats and reiterates all of the allegations contained above as if fully set forth herein.

124. The Defendant CITY, through its Police Department and Police Commissioners, had in effect, both before and at the time of the events alleged in this complaint, several interrelated de facto policies, practices and customs, including, *inter alia*,

- a. a policy, practice and custom of falsely charging individuals with crimes in retaliation for their inability and/or perceived lack of truthfulness in being unable to provide information regarding crimes the NYPD officers are investigating;
- b. a policy, practice and custom of failing to properly train or supervise officers in the proper techniques of investigating serious crimes;
- c. a policy, practice and custom of using coercion, isolation, intimidation, manipulation, deceit, false promises, and other unlawful and improper interrogation methods;

- d. a policy, practice and custom of failing to properly discipline officers who violate the United States Constitution or law, or otherwise transgress the rights of criminal suspects during their investigations; and
- e. a policy, practice and custom of doing whatever necessary to secure convictions of persons accused of gun crimes with concomitant refusal to consider evidence inconsistent with the theory of those persons' guilt.

125. These interrelated policies, practices and customs, separately and/or together, were implemented with deliberate indifference, and were a direct and proximate cause of the plaintiff's Constitutional violations and injuries, as set forth above.

126. These interrelated policies, practices and customs, separately and/or together, were the direct and proximate cause of injury and damage to plaintiff and violated her rights as guaranteed by the United States Constitution, as well as his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

127. The existence of these interrelated policies, practices and customs can be inferred from numerous incidents reflecting a pattern of police misconduct like that alleged herein. (*See, e.g. In re McCray, Richardson, Santana, Wise and Salaam Litigation*, 03-cv-9685(DAB)(RLE) [S.D.N.Y. 2003]).

128. The existence of these interrelated policies, practices and customs can be inferred from the fact that the incidents of police misconduct alleged herein were authorized by individuals with policymaking authority in the Police Department.

129. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

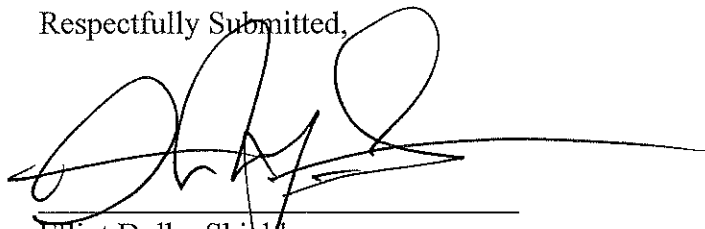
130. Accordingly, plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

WHEREFORE, and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- a. Empanel a jury;
- b. Award compensatory and punitive damages awards, each in the separate amounts of \$2,000,000, or such greater amounts as may be set by a jury;
- c. A court order, pursuant to 42 U.S.C. §1988, that the plaintiffs are entitled to the costs involved in maintaining this action and attorneys' fees;
- d. Award appropriate declaratory and injunctive relief;
- e. The plaintiff demands the foregoing relief jointly and severally against all of the defendants, except that the punitive damages demands are, as a matter of law, not recoverable against a municipality and therefore are not made against the City;
- f. Such other and further relief as this court may deem just and proper.

Dated: New York, New York
September 28, 2017

Respectfully Submitted,



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TO:

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250 West 135th Street, New York, NY, 10030
POLICE OFFICER MARKEITH CATLIN, Shield No. 7111, 32nd Precinct, 250 West
135th Street, New York, NY, 10030
POLICE OFFICER GREGORY LOBIANCO, Shield No. 31307, 32nd Precinct, 250
West 135th Street, New York, NY, 10030

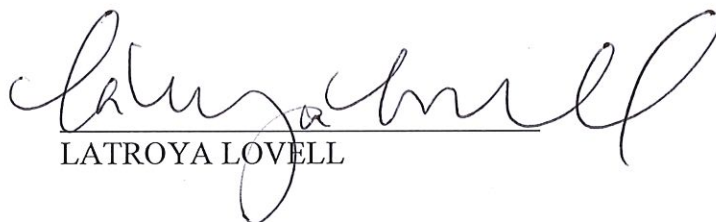
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, LATROYA LOVELL, being duly sworn, deposes and says:

I am the plaintiff in the within action; I have read the foregoing Summons & Complaint and know the contents thereof; the same is true to my own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: investigation, and the file maintained by my attorney, which I believe to be true.


LATROYA LOVELL

Sworn to before me this
28th day of September, 2017


NOTARY PUBLIC

